

Meena Devi Alias Meena Alavi v. State of U.P.

Allahabad High Court · Division Bench · 22 April 2019 · Writ-C No. 13852 of 2019 · **Writ disposed; bill dispute to clause 6.5; restore on deposit**

HEADNOTE

A consumer disputing an electricity bill must proceed under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 rather than by writ. If the consumer deposits the disputed amount, the licensee is to restore supply immediately, and a clause 6.5 dispute may still be decided notwithstanding that payment.

FACTUAL SUMMARY

The petitioner, Meena Devi alias Meena Alavi, filed a writ petition in the Allahabad High Court disputing an electricity bill. She had submitted a representation dated 3 December 2018 and sought a direction that it be decided and that her electricity connection be restored. Counsel for the State and for the distribution licensee were heard. At the hearing her counsel offered to deposit the disputed bill amount if supply was restored. The Court did not examine whether the bill was correct.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-forum

HOLDING

Where the consumer disputes an electricity bill, the proper remedy is paragraph 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer deposits the disputed amount, the respondents must restore electricity immediately, and any dispute raised under clause 6.5 may be decided notwithstanding that payment. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer disputing an electricity bill must proceed under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 rather than by writ. If the consumer deposits the disputed amount, the licensee is to restore supply immediately, and a clause 6.5 dispute may still be decided notwithstanding that payment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE REPRESENTATION DATED 3.12.2018

Left to be decided under clause 6.5 notwithstanding any deposit made to obtain restoration ¶ 1